



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
AIR QUALITY DIVISION



PHILLIP D. ROOS
DIRECTOR

March 13, 2025

Anthony Testa
Regional Gas Program Manager
Wexford County Landfill
10599 West Five Mile Road
Northville, MI 48168

SRN: N3862, Wexford County

Dear Anthony Testa:

VIOLATION NOTICE

On June 4, 2024, the Department of Environment, Great Lakes, and Energy (EGLE), Air Quality Division (AQD), conducted an inspection of Wexford County Landfill (N3862) located at 990 North Mackinaw Trail, Manton, Michigan. The purpose of this inspection was to determine Wexford County Landfill's (N3862) compliance with the requirements of the federal Clean Air Act; Part 55, Air Pollution Control, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (Act 451); the Air Pollution Control Rules; the conditions of Renewable Operating Permit (ROP) number MI-ROP-N3862-2022; Title 40 of the Code of Federal Regulations Part 60, Subparts WWW and XXX (40 CFR Part 60, NSPS WWW & XXX).

During the inspection and associated records review, staff observed the following:

Process Description	Rule/Permit Condition Violated	Comments
EULANDFILL<34 (MSW Landfill)	40 CFR Part 60, Subpart WWW	Failure to calculate and report annual NMOC emission rate in accordance with 60.754(a)(1), 60.757(b);
EULANDFILL<34 (MSW Landfill)	40 CFR Part 60, Subpart WWW	Failure to install a compliant gas collection and control system (GCCS) in accordance with 60.752(b)(2)
EULANDFILL<34 (MSW Landfill)	40 CFR Part 60, Subpart XXX	Failure to submit notification pursuant to 60.7(a)(4); Failure to calculate and report annual NMOC emission rate in accordance with 60.764(a)(1), 60.767(b)
EULANDFILL<34 (MSW Landfill)	40 CFR Part 60, Subpart XXX	Failure to install a compliant GCCS in accordance with 60.762(b)(2)

EULANDFILL<34 (MSW Landfill)	MI-ROP-N3862-2022, Special Condition (SC) VI.2, VII.6	Failure to calculate and submit a timely report of annual NMOC emission rate in accordance with MI-ROP-N3862-2022
EULANDFILL<34 (MSW Landfill)	MI-ROP-N3862-2022 Special Condition IX.1	Failure to submit application to revise MI-ROP-N3862-2022

Wexford County Landfill is classified as a Municipal Solid Waste Landfill. The landfill is subject to federal subparts and a renewable operating permit (ROP) issued by the AQD that require calculation and annual reporting of the non-methane organic compound (NMOC) emission rate. The purpose of the emission rate calculation is to determine whether the landfill is required to design and install an active Gas Collection and Control System (GCCS) in accordance with those federal subparts and the landfill's ROP. The NMOC calculation method as well as timelines for the design and installation of a GCCS are prescribed in the federal subparts and the facility's ROP.

On April 26, 2016, Wexford County Landfill reported an NMOC emission rate of 31 megagrams/year MG/yr in a Tier 2 report. Staff review of this report indicates that the facility incorrectly calculated the NMOC emission rate. The AQD calculations using the rule required defaults, the landfill's reported site-specific Tier 2 NMOC concentration, and waste in place data result in an NMOC emission rate of 55 MG/yr. This emission rate of greater than 50 MG/yr triggered the control requirements of 40 CFR Part 60, Subpart WWW. Specifically, the landfill was required to either submit a GCCS design plan, or to report NMOC emissions recalculated using Tier 3 site-specific values within 1 year of the first calculated exceedance of 50 MG/year. Wexford County Landfill did not complete either of these requirements.

Records indicate that Wexford County Landfill commenced construction on Cell H-West in June 2021. At that time, landfills that commenced modification after July 17, 2014, became subject to the requirements of 40 CFR Part 60, Subpart XXX. The landfill did not notify the AQD within 90 days as was required by 40 CFR 60.7(a). Although technically no longer eligible for Tier 2 estimation, the landfill incorrectly reported an NMOC emission rate of 35.8 MG/yr in a Tier 2 report received March 30, 2021. The AQD calculations using rule required defaults, the landfill's reported site-specific Tier 2 NMOC concentration, and waste in place data result in an NMOC emission rate of 53 MG/yr. This emission rate of greater than 34 MG/yr triggered the control requirements of 40 CFR Part 60, Subpart XXX. Specifically, the landfill was required to either submit a GCCS design plan, or to report NMOC emissions recalculated using Tier 3 site-specific values within 1 year of the first calculated exceedance of 50 MG/year. Wexford County Landfill did not complete either of these requirements.

At the time of the June 4, 2024, inspection, the landfill had not submitted a timely annual NMOC emission rate report. Additionally, the landfill was required to submit an application to revise MI-ROP-N3862-2022 within 90 days of triggering control requirements.

Please initiate actions necessary to correct the cited violations and submit a written response to this Violation Notice by April 3, 2025 (which coincides with 21 calendar days from the date of this letter). The written response should include: the dates the violations occurred; an

Anthony Testa
Wexford County Landfill (N3862)
Page 3
March 13, 2025

explanation of the causes and duration of the violations; whether the violations are ongoing; a summary of the actions that have been taken and are proposed to be taken to correct the violations and the dates by which these actions will take place; and what steps are being taken to prevent a reoccurrence.

Please submit the landfill's flare flowrate data from January 2020 – January 2025 in excel format with the written response.

Please submit your response using the associated schedule for site N3862 within the MiEnviro Portal located at <https://mienviro.michigan.gov/>

If Wexford County Landfill (N3862) believes the above observations or statements are inaccurate or do not constitute violations of the applicable legal requirements cited, please provide appropriate factual information to explain your position.

Thank you for your attention to resolving the violations cited above and for the cooperation that was extended to me during my inspection of Wexford County Landfill (N3862). If you have any questions regarding the violations or the actions necessary to bring this facility into compliance, please contact me at the number listed below.

Sincerely,



Lindsey Wells
Senior Environmental Quality Analyst
Air Quality Division
517-282-2345

cc: Annette Switzer, EGLE
Christopher Ethridge, EGLE
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